AIRCRAFT MARKETING AGREEMENT FOR DIRECT FLY ALTO AIRCRAFT (N159G)

This aircraft marketing agreement ("Agreement') entered into this 15 day of December 2022, by Aviation Ape Inc., (Owner), Ricardo Foster Infinity Aero Club Tampa Bay (Agent), with respect to an aircraft more fully described below.

WITNESSETH:

WHEREAS, Agent in the ordinary course of business develops relationships with prospective customers for owner seeking to rent aircraft;
WHEREAS, Owner desires to rent the aircraft to qualified licensed pilots on an hourly basis;
WHEREAS, Agent is willing to serve as marketing and compliance agent upon the terms and conditions herein set forth.
NOW THEREFORE, in consideration of these promises and of the covenants herein, and for good and valuable consideration, Owner and Agent hereby agree as follows:

1. AIRCRAFT: Owner hereby authorizes Agent to serve as a nonexclusive marketer for one (1) Direct Fly Alto, bearing FAA Registration Number N159G

2. TERM OF AGREEMENT: The term of this Agreement shall be for a period one (1) calendar month commencing on the date hereof, and, absent election to the contrary, shall automatically renew each calendar month thereafter. This Agreement shall be subject to termination by either the Owner or Agent for any reason whatsoever upon thirty (30) days advance written notice given to the other party.

3. USE OF THE AIRCRAFT: Subject to the provisions of this Agreement, Agent may use the Aircraft for the purpose of hourly rental by other persons not party to this Agreement, and for operation by the Agent for flight training and rental, as well as operation by the Agent for its own use (company use).

1 a. Agent shall at all times use, permit use, and operate the Aircraft in full compliance with Federal Aviation Regulations. Agent shall not take the Aircraft, or suffer or permit it to be taken, outside the continental limits of the United States and Canada without the prior written consent of Owner. After each use of the Aircraft by Agent, Agent shall return the Aircraft to the base airport in the same condition as when received by Agent except for reasonable wear and tear from ordinary use.
b. Agent shall not use the Aircraft or permit it to be used for any business or purpose that violates any present or future law, rule, order, ordinance, or regulation of the United States of America, Canada, and any city, state, territory or governmental subdivision thereof, or in violation of any airworthiness certificate, license, or registration relating to the Aircraft, or in violation of any terms or conditions imposed by any insurance carrier of the Aircraft or by this Agreement.
c. Accidents shall be reported by Agent immediately to Owner, followed by written report from Agent within forty-eight (48) hours, and Agent shall file all necessary reports with the FAA and insurance company.

4. PILOTS: Agent shall not operate the Aircraft or permit it to be operated by any person or pilot in violation of Federal Aviation Regulations as now in force or subsequently amended, or of any present or future law, rule, order, ordinance, or regulation of the United States of America or Canada, or any city, state, territory, or governmental subdivision thereof, or in violation of any terms or conditions imposed by any insurance carrier of the Aircraft or by this Agreement. Agent will have the right rent the Aircraft to individuals who have met federal licensing, recurrency, and check ride requirements.

5. PRIORITY OF USE: It is the intention of the parties that Agent will use the Aircraft during the term of this Agreement for the purposes set forth herein. It is agreed that Agent will schedule all use of the Aircraft and that the general rule of "first come first served' will apply for available time up to 30 days in advance, excluding time scheduled in advance under such terms and restrictions as the Owner and Agent may otherwise agree.

6. AIRCRAFT BASE: While this Agreement shall be in effect, the permanent base of the Aircraft shall be X39, Tampa North Aero Park. Agent shall ensure that the Aircraft shall, at all times while at base be tied down or hangered securely at the expense of Agent. Tie down and hangar fees at other airports, and all landing fees, ramp fees, and other airport expenses at any airport, including the Aircraft's base airport, shall be paid by the party then using the Aircraft and incurring such costs and expenses.

7. MARKETING FEE, REMITTANCE & MINIMUMS: The Agent shall remit to the Owner the sum of SIXTY-FIVE DOLLARS ($65) per rental hour of rental proceeds derived from Agent's activities hereunder, derived per hour for each Hobbs hour the aircraft is flown pursuant to this Agreement. All other net proceeds derived from the use of the aircraft pursuant to this agreement shall be collected by the Agent. Agent agrees to a monthly minimum of FORTY (40) hours monthly.
a. Owner shall be furnished by Agent a report of Agent's calculations.
b. Agent shall remit payment to the Owner in arrears no later than thirty (30) days from the end of the preceding period. Agent acknowledges that for any company use of the Aircraft, Agent shall remit to the Owner the sum of SIXTY-FIVE DOLLARS ($65) per hour for each Hobbs hour the aircraft is flown pursuant to this Agreement. Agent acknowledges there is a FORTY (40) hour minimum monthly. Transport to air shows may be waived if approved by Owner. Agent and Owner both acknowledge that no funds will be remitted for any flights for the purposes of maintenance or test flights pertinent to the safe operation of and maintenance of the aircraft.

8. MAINTENANCE: While this Agreement is in effect, Agent will maintain the Aircraft and keep the Aircraft currently registered, certificated, and airworthy to carry passengers for hire, provide flight training, or to be commercially rented, in accordance with the requirements of the Federal Aviation Administration. This maintenance will be conducted at Tampa North Aero Park (X39) establishment at the sole expense of the Agent. While this Agreement is in effect, Agent and Owner shall be responsible for Major Engine

Overhaul on a 60%/40% split. All such work on the Aircraft shall be performed in accordance with the standards set by regulations of the FAA.

9. OPERATING EXPENSES: Agent shall be responsible for providing all fuel and oil consumed operating this Aircraft. Such costs incurred shall be the sole responsibility of the Agent. Agent shall be responsible for all landing fees and fines incurred in connection with its use of the Aircraft pursuant to this Agreement.

10. REGISTRATION FEES AND TAXES: Owner shall pay registration fees and any property or excise taxes on the Aircraft assessed by any governmental authority, and any income tax assessed.

11. SALES AND USE TAX: Agent shall collect and remit any sales or use tax assessed by any governmental authority incurred through rental of the Aircraft under this Agreement. In the case of flight instruction to customers, Agent shall separately state the amount paid by customers for use of the aircraft in such instruction, and charge sales tax on that amount.

12. INSURANCE: At all times during the term of this Agreement, the Agent shall provide and maintain in full force and effect such public liability and property damage insurance coverages with respect to the Aircraft as it may deem to be appropriate for the operation of the Aircraft consistent with this Agreement. The policy will provide, as to Agent, breach of warranty coverage, and waiver of subrogation. At all times during the term of this Agreement, the Agent shall further provide and maintain in full force and effect, Aircraft hull coverage as determined by Agent.
a. The full cost of all such insurance coverages shall be borne entirely by the Agent. Proceeds from the insurance maintained by Agent pursuant to this Agreement shall be applied to the cost of repairs of the damage covered by insurance.
c. Agent shall furnish certified or original copies of all insurance policies, together with all attachments and endorsements thereto, with evidence that liability insurance policies name "Agent", as "Additional Insured" on aircraft liability coverage and as «Primary-Loss Payee" for aircraft physical damage coverage.

c. Owner shall not offer any discounted rates or charge anything outside the scope of this agreement.

13. UNAVAILABILITY OF THE AIRCRAFT: Except as may be expressly provided herein, Owner shall not be liable to Agent for any loss of use of the Aircraft or interruption of Agent's business if the Aircraft fails to function, or if it is out of use for repairs or service, or for any other cause whatsoever. In no event shall the Agent be liable for any punitive, incidental, or consequential damages including, without limitation, any claims for loss of profits or goodwill, loss of use, loss of revenue, loss of time, inconvenience, loss of diminution of value, or commercial loss, whether arising out of contract,
warranty or tort (including, without limitation, negligence, active or passive; imputed

liability; or strict liability) or by statute or otherwise. As used in this paragraph, the term Agent includes Infinity Aero Club Tampa Bay, its subsidiaries, affiliates or related companies, assignees and successors, as well as all of Infinity Aero Club Tampa Bay's officers, directors, employees, and agents. In the event that the Aircraft shall be lost, seized, confiscated, destroyed, or damaged from any cause whatsoever during the term of this Agreement with the result that the Aircraft is rendered unavailable or unfit for further use by the Agent, this Agreement shall expire and terminate.

14. OWNERSHIP OF THE AIRCRAFT: The Aircraft at all times shall remain and be the sole and exclusive property of the Owner, and Owner may give any lender a chattel mortgage or security interest on the Aircraft as security for any debt of Owner. Other than the right to use the Aircraft under the conditions of this Agreement, Agent shall have no rights in the Aircraft.

15. ASSIGNMENT: Agent shall not assign this Agreement.

16. INDEMNIFICATION: Agent shall identify, defend and hold harmless Owner and its members, directors, officers and employees from and against all claims, losses and liabilities arising out of or in connection with Agent's possession, use or operation of the Aircraft pursuant to this Agreement.

17. DEFAULT: In the event Agent or Owner fails to make any payments due hereunder in a timely fashion or fails to comply with any of the other terms and conditions of this Agreement, and any such default shall not be remedied forthwith after written notice from Agent or Owner, Agent and Owner shall have the right, cumulative of all other rights, to declare this Agreement in default, and to terminate the same without further notice. A party shall be in breach of this Agreement if:

(1) such party defaults in the performance of any of its obligations under this Agreement and such default shall continue for thirty (30) days after receipt by such party of written notice thereof from the other party; or

(2) such party takes any action to prevent or hinder the performance of any of its obligations under this Agreement. In the event of any breach by the other party, the non-breaching party shall have the right to terminate the Agreement immediately and to pursue any other remedy available either in law or equity, including, where Agent is non-breaching party, the immediate grounding and
return of the Aircraft.

18. NOTICES: Whenever, under the terms of this Agreement, notice is required or desired to be given, it shall be given in any commercially reasonable manner; provided however, that any specific time requirements stated herein shall be complied with.

19. REPRESENTATIONS AND WARRANTIES: The Agent represents and warrants that it is a Non-Profit Corporation 501c3, validly existing, and in good standing under the laws of the State of Florida, and that it has full power to execute and deliver this Agreement, and is appropriately authorized to perform under its terms.
Owner represents and warrants that it is a for-profit corporation duly organized, validly existing, and in good standing under the laws of the State of Florida, and that it has full power to execute and deliver this Agreement, and is appropriately authorized to perform under its terms.

20. DELAY AND FORBEARANCE: No delay or forbearance of the Owner or Agent in the exercise of any remedy or right under this Agreement will constitute a waiver thereof and the exercise or partial exercise of a remedy shall not preclude the further exercise of the same or any other right to remedy.

21. BINDING AGREEMENT: The terms of this Agreement shall be binding upon the parties, their successors, personal representatives, and assigns.

22. SEVERABILITY OF PROVISIONS: Any provisions of this Agreement prohibited by law or by court decree in any locality or state shall be ineffective to the extent of such prohibition, without invalidating or affecting the remaining provisions of this Agreement in such localities and without affecting the validity of such provisions within states and localities in which they are not prohibited by law or court decree.

23. ENTIRE AGREEMENT: This Agreement constitutes the entire Agreement between the parties hereto. Agent and Owner acknowledge that no representations, inducements, promises, guarantees, agreements, or undertakings oral or written, express or implied, other than those set forth herein, have been made by Owner or Agent. No amendment or changes in the terms and conditions hereof shall be binding unless reduced to writing and signed by the party to be bound by such change or amendment.

24. GOVERNING LAW: The laws of the State of Florida shall govern this Agreement and it shall be construed without regard in its choice of law provisions.

IN WITNESS WHEREOF, the parties hereto have caused this Agreement to be executed by their duly authorized officers or individually as of the day and year first above written.

By: Zachary Purvis

President

Aviation Ape, Inc

By: Ricardo Foster

President

Infinity Aero Club Tampa Bay, inc

Ricardo E. Foster

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